THE SREE CHITRA TIRUNAL INSTITUTE FOR MEDICAL SCIENCES AND TECHNOLOGY, TRIVANDRUM, ACT, 1980

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THE SREE CHITRA TIRUNAL INSTITUTE FOR MEDICAL SCIENCES AND TECHNOLOGY, TRIVANDRUM ACT, 1980

ACT NO. 52 OF 1980

[3*rd December*, 1980.]

An Act to declare the Sree Chitra Tirunal Medical Centre Society for Advanced Studies in Specialities, Trivandrum, in the State of Kerala, to be an institution of national importance and to provide for its incorporation and matters connected therewith.

BE it enacted by Parliament in the Thirty-first Year of the Republic of India as follows:—

1. Short title and commencement.—(*1*) This Act may be called the Sree Chitra Tirunal Institute for Medical Sciences and Technology, Trivandrum, Act, 1980.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

2. Declaration of the Sree Chitra Tirunal Medical Centre Society for Advanced Studies in Specialities, Trivandrum, as an institution of national importance.—Whereas the objects of the Sree Chitra Tirunal Medical Centre Society for Advanced Studies in Specialities, Trivandrum, in the State of Kerala, are such as to make the institution one of national importance, it is hereby declared that the institution, known as the Sree Chitra Tirunal Medical Centre Society for Advanced Studies in Specialities, Trivandrum, is an institution of national importance.

3. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "Chairman" means the Chairman of the Governing Body;

(*b*) "Director" means the Director of the Institute;

(*c*) "Fund" means the Fund of the Institute referred to in section 16;

(*d*) "Governing Body" means the Governing Body of the Institute;

(*e*) "Institute" means the institution known as the Sree Chitra Tirunal Institute for Medical Sciences and Technology, Trivandrum, incorporated under this Act;

(*f*) "member" means a member of the Institute;

(*g*) "President" means the President of the Institute;

(*h*) "regulation" means a regulation made by the Institute;

(*i*) "rule" means a rule made by the Central Government.

4. Incorporation of Institute.—The Sree Chitra Tirunal Medical Centre Society for Advanced Studies in Specialities, Trivandrum, is hereby constituted a body corporate by the name of Sree Chitra Tirunal Institute for Medical Sciences and Technology, Trivandrum, and as such body corporate, it shall have perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property and to contract, and shall, by that name, sue and be sued.

5. Composition of Institute.—The Institute shall consist of the following members, namely:—

(*a*) the Vice-Chancellor of the Kerala University, *ex officio*;

(*b*) the Director-General of Health Services, Government of India, *ex officio*;

(*c*) the Director, *ex officio*;

(*d*) four members to be nominated by the Central Government to represent respectively the Departments or, as the case may be, Ministries of that Government dealing with Science and Technology, Health, Finance and Education;

1. 1st March, 1981, *vide* notification No. G.S.R. 254(E), dated 17th February, 1981, *see* Gazette of India, Extraordinary, Part II, sec. 3(*i*).

(*e*) two members to be nominated by the Government of the State of Kerala to represent respectively the Departments or, as the case may be, Ministries of that Government dealing with Planning, Science and Technology and Health;

(*f*) three scientists of whom two shall be medical scientists and one shall be a social scientist, to be nominated by the Central Government in the manner prescribed by rules;

(*g*) three scientists representing engineering and technology to be nominated by the Central Government in the manner prescribed by rules;

(*h*) the Head of the Biomedical Technology Wing of the Institute, *ex officio*;

(*i*) three representatives of the medical faculties of Indian Universities to be nominated by the Central Government in the manner prescribed by rules; and

(*j*) three members of Parliament of whom two shall be elected from among themselves by the members of the House of the People and one from among themselves by the members of the Council of States.

6. Term of office of and vacancies among members.—(*1*) Save as otherwise provided in this section, the term of office of a member shall be five years from the date of his nomination or election.

(*2*) The term of office of a member elected under clause (*j*) of section 5 shall come to an end as soon as he ceases to be a member of the House from which he was elected.

(*3*) The term of office of an *ex officio* member shall continue so long as he holds the office by virtue of which he is such a member.

(*4*) The term of office of a member nominated or elected to fill a casual vacancy shall continue for the remainder of the term of the member in whose place he is nominated or elected.

(*5*) An outgoing member other than a member elected under clause (*j*) of section 5 shall, unless the Central Government otherwise directs, continue in office until another person is nominated as a member in his place.

(*6*) An outgoing member shall be eligible for re-nomination or reelection.

(*7*) A member may resign his office by writing under his hand addressed to the Central Government but he shall continue in office until his resignation is accepted by that Government.

(*8*) The manner of filling vacancies among members shall be such as may be prescribed by rules.

7. President of Institute.—(*1*) There shall be a President of the Institute who shall be nominated by the Central Government from among the members other than the Director.

(*2*) The President shall exercise such powers and discharge such functions as are laid down in this Act or as may be prescribed by rules or regulations.

8. Allowances of President and members.—The President and other members shall receive such allowances, if any, from the Institute as may be prescribed by rules.

9. Meetings of Institute.—The Institute shall hold its first meeting at such time and place as may be appointed by the Central Government and shall observe such rules of procedure in regard to the transaction of business at the first meeting as may be laid down by that Government; and thereafter the Institute shall meet at such times and places and observe such rules of procedure in regard to the transaction of business at its meetings as may be prescribed by regulations.

10. Governing Body and other committees of Institute.—(*1*) There shall be a Governing Body of the Institute which shall be constituted by the Institute in such manner as may be prescribed by regulations:

Provided that the number of persons who are not members of the Institute shall not exceed one-third of the total membership of the Governing Body.

(*2*) The Governing Body shall be the Executive Committee of the Institute and shall exercise such powers and discharge such functions as the Institute may, by regulations made in this behalf, confer or impose upon it.

(*3*) The President shall be the Chairman of the Governing Body and as Chairman thereof shall exercise such powers and discharge such functions as may be prescribed by regulations.

(*4*) The procedure to be followed in the exercise of its powers and discharge of its functions by the Governing Body, and the term of office of, and the manner of filling vacancies among, the members of the Governing Body shall be such as may be prescribed by regulations.

(*5*) Subject to such control and restrictions as may be prescribed by rules, the Institute may constitute as many standing committees and as many *ad hoc* committees as it thinks fit for exercising any power or discharging any function of the Institute or for inquiring into, or reporting or advising upon, any matter which the Institute may refer to them.

(*6*) The Chairman and members of the Governing Body and Chairman and members of a standing committee or an *ad hoc* committee shall receive such allowances, if any, as may be prescribed by regulations.

11. Staff of Institute.—(*1*) There shall be a chief executive officer of the Institute who shall be designated as the Director of the Institute and shall, subject to such rules as may be made in this behalf, be appointed by the Institute:

Provided that the first Director of the Institute shall be appointed by the Central Government.

(*2*) The Director shall act as the Secretary to the Institute as well as the Governing Body.

(*3*) The Director shall exercise such powers and discharge such functions as may be prescribed by regulations or as may be delegated to him by the Institute or the President or by the Governing Body or the Chairman.

(*4*) Subject to such rules as may be made in this behalf, the Institute may appoint such number of other officers and employees as may be necessary for the exercise of its powers and discharge of its functions and may determine the designations and grades of such other officers and employees.

(*5*) Subject to such rules as may be made in this behalf, the Director and other officers and employees of the Institute shall be entitled to such salary and allowances and shall be governed by such conditions of service in respect of leave, pension, gratuity, provident fund and other matters as may be prescribed by regulations made in this behalf.

12. Objects of Institute.—The objects of the Institute shall be—

(*a*) to promote biomedical engineering and technology;

(*b*) to provide and demonstrate high standards of patient care in advanced medical specialities; and

(*c*) to develop post-graduate training programmes of the highest quality in advanced medical specialities and biomedical engineering and technology.

13. Functions of Institute.—With a view to the promotion of the objects specified in section 12, the Institute may,—

(*a*) provide for post-graduate teaching in the science of modern medicine and other allied sciences, including physical and biological sciences;

(*b*) provide facilities for research in the various branches of such sciences;

(*c*) conduct experiments in integrated methods of post-graduate medical and technological education in order to arrive at satisfactory standards of such education;

(*d*) prescribe courses and curricula for post-graduate studies;

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(*e*) provide for post-graduate teaching and training in biomedical sciences and technology;

(*f*) notwithstanding anything contained in any other law for the time being in force, establish and maintain—

(*i*) one or more well equipped hospitals; and

(*ii*) one or more centers for research and development in biomedical technology;

(*g*) hold examinations and grant such degrees, diplomas and other academic distinctions and titles in post-graduate medical education and biomedical technology as may be laid down in the regulations;

(*h*) institute and appoint persons to professorships, readerships, lecturerships and posts of any description in accordance with the regulations;

(*i*) receive grants from the Governments and gifts, donations, benefactions, bequests and transfers of properties, both movable and immovable, from donors, benefactors, testators or transferors, as the case may be;

(*j*) deal with any property belonging to, or vested in, the Institute in any manner which is considered necessary for promoting the objects specified in section l2;

(*k*) demand and receive such fees and other charges as may be prescribed by regulations; and

(*l*) do all other acts and things as may be necessary to further the objects specified in section 12.

14. Vesting of property.—All properties which had vested in the Sree Chitra Tirunal Medical Centre Society for Advanced Studies in Specialities, Trivandrum, immediately before the commencement of this Act, shall, on and from such commencement, vest in the Institute.

15. Payment to Institute.—The Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the Institute in each financial year such sums of money and in such manner as may be considered necessary by that Government for the exercise of its powers and discharge of its functions under this Act.

16. Fund of Institute.—(*1*) The Institute shall maintain a Fund to which shall be credited—

(*a*) all moneys provided by the Central Government and the Government of Kerala;

(*b*) all fees and other charges received by the Institute;

(*c*) all moneys received by the Institute by way of grants, gifts, donations, benefactions, bequests or transfers; and

(*d*) all moneys received by the Institute in any other manner or from any other source.

(*2*) All moneys credited to the Fund shall be deposited in such banks or invested in such manner as the Institute may, with the approval of the Central Government, decide.

(*3*) The Fund shall be applied towards meeting the expenses of the Institute including expenses incurred in the exercise of its powers and discharge of its functions under section 13.

17. Budget of Institute.—The Institute shall prepare, in such form and at such time every year, as may be prescribed by rules, a budget in respect of the financial year next ensuing showing the estimated receipts and expenditure of the Institute and shall forward to the Central Government such number of copies thereof as may be prescribed by rules.

18. Accounts and audit.—(*1*) The Institute shall maintain proper accounts and other relevant records and prepare an annual statement of accounts including the balance-sheet in such form as the Central Government may, by rules, prescribe, and in accordance with such general directions as may be issued by that Government, in consultation with the Comptroller and Auditor General of India.

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(*2*) The accounts of the Institute shall be audited by the Comptroller and Auditor-General of India and any expenditure incurred by him in connection with such audit shall be payable by the Institute to the Comptroller and Auditor-General of India.

(*3*) The Comptroller and Auditor-General of India and any person appointed by him in connection with the audit of the accounts of the Institute shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India has in connection with the audit of the Government accounts and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect the offices of the Institute as well as of the institutions established and maintained by it.

(*4*) The accounts of the Institute as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government and that Government shall cause the same to be laid before both Houses of Parliament.

19. Annual report.—The Institute shall prepare for every year a report of its activities during that year and submit the report to the Central Government in such form and on or before such date as may be prescribed by rules and a copy of the report shall be laid, as soon as may be after it is received, before both Houses of Parliament.

20. Pension and provident funds.—(*1*) The Institute shall constitute for the benefit of its officers, teachers and other employees in such manner and subject to such conditions as may be prescribed by regulations, such pension and provident funds as it may deem fit.

(*2*) Where any such pension or provident fund has been constituted, the Central Government may declare that the provisions of the Provident Funds Act, 1925, (19 of 1925) shall apply to such fund as if it were a Government Provident Fund.

21. Authentication of orders and instruments of Institute.—All orders and decisions of the Institute shall be authenticated by the signature of the President or any other member authorised by the Institute in this behalf, and all other instruments shall be authenticated by the signature of the Director or any other officer of the Institute authorised in like manner in this behalf.

22. Acts and proceedings not to be invalidated by vacancies, etc.—No act done or proceeding taken by the Institute, Governing Body or any standing or *ad hoc* committee under this Act shall be questioned on the ground merely of the existence of any vacancy in, or defect in the constitution of, the Institute, Governing Body or such standing or *ad hoc* committee.

23. Grant of medical degrees, diplomas, etc., by Institute.—Notwithstanding anything contained in any other law for the time being in force, the Institute shall have power to grant medical degrees, diplomas and other academic distinctions and titles under this Act.

24. Recognition of medical qualifications granted by Institute.—Notwithstanding anything contained in the Indian Medical Council Act, 1956 (102 of 1956), the medical degrees and diplomas granted by the Institute under this Act shall be recognised medical qualifications for the purposes of that Act and shall be deemed to be included in the First Schedule to that Act.

25. Control by Central Government.—The Institute shall carry out such directions as may be issued to it from time to time by the Central Government for the efficient administration of this Act.

26. Disputes between Institute and Central Government.—If in, or in connection with, the exercise of its powers and discharge of its functions by the Institute under this Act, any dispute arises between the Institute and the Central Government, the decision of the Central Government on such dispute shall be final.

27. Returns and information.—The Institute shall furnish to the Central Government such reports, returns and other information as that Government may require from time to time.

28. Transfer of service of existing employees.—Subject to the provisions of this Act, every person who was employed in the Sree Chitra Tirunal Medical Centre Society for Advanced Studies in Specialities, Trivandrum, immediately before the commencement of this Act shall, on and from such commencement, become an employee of the Institute and shall hold his office or service therein by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to leave, pension, gratuity, provident fund and other matters as he would have held the same on the date of commencement of this Act if this Act had not been passed, and shall continue to do so unless and until his employment is terminated or until such tenure, remuneration and terms and conditions are duly altered by regulations:

Provided that the tenure, remuneration and terms and conditions of service of any such person shall not be altered to his disadvantage without the previous approval of the Central Government.

29. Continuance of facilities at Institute.—The Institute shall continue to provide facilities to the Government and people of the State of Kerala and the Central Government and such facilities shall not, in any respect, be less favourable to the said Governments and people than what were being provided to them before the commencement of this Act and shall be made available for such period and upon such terms and conditions (including those relating to any contributions to be made for the provision of such facilities) as may be agreed upon between the Institute, the Government of the State of Kerala and the Central Government.

30. Power to remove difficulties.—If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, within a period of three years from the commencement of this Act, by order published in the Official Gazette, make such provisions or give such directions not inconsistent with the provisions of this Act, as appears to it to be necessary or expedient for removing the difficulty.

31. Power to make rules.—(*1*) The Central Government, after consultation with the Institute, may, by notification in the Official Gazette, make rules to carry out the purposes of this Act:

Provided that consultation with the Institute shall not be necessary on the first occasion of the making of rules under this section, but the Central Government shall take into consideration any suggestions which the Institute may make in relation to the amendment of such rules after they are made.

(*2*) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(*a*) the manner of nomination of members under clauses (*f*), (*g*) and (*i*) of section 5;

(*b*) the manner of filling vacancies among members under section 6;

(*c*) the powers and functions to be exercised and discharged by the President under sub-section (*2*) of section 7;

(*d*) the allowances, if any, to be paid to the President and other members under section 8;

(*e*) the control and restrictions in relation to the constitution of standing and *ad hoc* committees under sub-section (*5*) of section 10;

(*f*) the appointment of the Director under sub-section (*1*) of section 11;

(*g*) the number of officers and employees that may be appointed by the Institute and the manner of such appointment under sub-section (*4*) of section 11;

(*h*) the salaries and allowances to be paid to the Director and other officers and employees of the Institute under sub-section (*5*) of section 11;

(*i*) the form in which, and the time at which, the budget shall be prepared by the Institute and the number of copies thereof to be forwarded to the Central Government under section 17;

(*j*) the form in which an annual statement of accounts including the balance-sheet shall be prepared by the Institute under sub-section (*1*) of section 18;

(*k*) the form in which and the date before which, the report of the activities of the Institute shall be submitted to the Central Government under section 19;

(*1*) the form and manner in which reports, returns and other information are to be furnished by the Institute to the Central Government under section 27;

(*m*) any other matter which has to be or may be prescribed by rules.

32. Power to make regulations.—(*1*) The Institute may, with the previous approval of the Central Government, make regulations consistent with this Act and the rules made thereunder to carry out the purposes of this Act, and without prejudice to the generality of this power, such regulations may provide for—

(*a*) the powers and functions to be exercised and discharged by the President under sub-section (*2*) of section 7;

(*b*) the summoning and holding of meetings, other than the first meeting, of the Institute under section 9, the time and place where such meetings are to be held, the conduct of business at such meetings and the number of members necessary to form a quorum;

(*c*) the manner of constituting the Governing Body and standing and *ad hoc* committees under section 10, the term of office of, and the manner of filling vacancies among, the members of the Governing Body and standing and *ad hoc* committees;

(*d*) the powers and functions to be exercised and discharged by the Governing Body and the Chairman under sub-sections (*2*) and (*3*) of section 10;

(*e*) the allowances, if any, to be paid to the Chairman and the members of the Governing Body and of standing and *ad hoc* committees under sub-section (*6*) of section 10;

(*f*) the procedure to be followed by the Governing Body and standing and *ad hoc* committees in the conduct of their business, exercise of their powers and discharge of their functions under section 10;

(*g*) the powers and functions to be exercised and discharged by the Director under sub-section (*3*) of section 11;

(*h*) the tenure of office, salaries and allowances and other conditions of service of the Director and other officers and employees of the Institute including teachers appointed by the Institute under sub-section (*5*) of section 11;

(*i*) the management of the properties of the Institute under section 13;

(*j*) the degrees, diplomas and other academic distinctions and titles which may be granted by the Institute under clause (*g*) of section 13;

(*k*) the professorships, readerships, lecturerships and other posts which may be instituted and persons who may be appointed to such professorships, readerships, lecturerships and other posts under clause (*h*) of section 13;

(*l*) the fees and other charges which may be demanded and received by the Institute under clause (*k*) of section 13;

(*m*) the manner in which, and the conditions subject to which, pension and provident funds may be constituted for the benefit of officers, teachers and other employees of the Institute under sub-section (*1*) of section 20;

(*n*) matters relating to tenure of office, remuneration and terms and conditions of service of the persons referred to in section 28;

(*o*) any other matter for which under this Act provisions may be made by regulations.

(*2*) Notwithstanding anything contained in sub-section (*1*), the first regulations under this Act shall be made by the Central Government; and any regulations so made may be altered or rescinded by the Institute in exercise of its power under sub-section (*1*).

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33. Rules and regulations to be laid before Parliament.—Every rule and every regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation or both Houses agree that the rule or regulation should not be made, the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation.

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